



'But a New Button to an Old Coat': The Enactment of the Statute of Monopolies, 21 James I cap.3

Chris R. Kyle

To cite this article: Chris R. Kyle (1998) 'But a New Button to an Old Coat': The Enactment of the Statute of Monopolies, 21 James I cap.3, Journal of Legal History, 19:3, 203-223, DOI: [10.1080/01440361908539576](https://doi.org/10.1080/01440361908539576)

To link to this article: <https://doi.org/10.1080/01440361908539576>



Published online: 15 Nov 2007.



Submit your article to this journal [↗](#)



Article views: 141



View related articles [↗](#)



Citing articles: 3 View citing articles [↗](#)

‘But a New Button to an Old Coat’: The Enactment of the Statute of Monopolies, 21 James I cap.3

CHRIS R. KYLE

The Monopolies Act of 1624 is the founding statute of copyright and patent law in the English-speaking Western world. Based upon the famous legal cases of John the Dyer and Darcy v. Allen, as well as the King's Book of Bounty, the Act has been seen as a symbol of the increasing power of a Parliament locked in a constitutional struggle with King James. This article argues that far from being a case of conflict between the monarch and the House of Commons, the Monopolies Act received the imprimatur of both the King and Commons against the wishes of powerful interests in the Lords. It concludes by stating that the significance of 21 James I cap.3 lies not only in its limitation on monopolies but that its enactment illustrates the close co-operation between the King and Commons.

Listed on the Parliament Roll as 21 James I cap.3 is the Statute of Monopolies. Widely regarded as the foundation statute of patent and copyright law, the act declared that monopolies, *non-obstante* licences and the forfeitures thereof were illegal. The history of the Act can be traced back to 1597 and the first significant agitation in the English House of Commons over the royal grants of monopoly patents. In the subsequent 27 years before its enactment in 1624, monopolies were the subject of frequent discussions in Parliament, were **condemned in the Common Law courts**, and became the subject of one of the most important royal declarations of the early Stuart period when they were confirmed as illegal by James I in his Book of Bounty (1610). The historiography of the Act has been based on the notion that an increasingly self-confident Commons managed to gain the upper hand over a reluctant King and force him to forgoe his prerogative right to grant monopoly patents. Dr Charles McIlwain described it as the ‘first statutory invasion of the prerogative’ and Wallace Notestein viewed it as part of the Commons’ ‘winning of the initiative’ which inevitably led to conflict between the Crown

and Commons and from thence to Civil War in the 1640s.¹ These views, collectively known as orthodox or whiggish, held sway over debates on both the Monopolies Act and Jacobean legislation for much of the twentieth century. However, led by Professor Geoffrey Elton in particular, a group of historians (loosely known as 'revisionists') began to question this orthodoxy and suggested that the proper business of Parliament was the enactment of statute law and that Parliament formed a 'point of contact' between the Crown and the governing elite.² To this end it was entirely normal for the Commons to seek redress of grievances in Parliament. The work of Elton formed the pathway for young scholars, such as David Dean, Carl Ericson and Norman Jones, to examine the legislation of Tudor Parliaments.³ Their research illustrated the close co-operation between the Crown, Lords and Commons in seeking to enact legislation for the benefit of the Commonwealth.

However, historians of the early Stuart period, with the notable exception of Professor Conrad Russell in his magisterial survey, *Parliaments and English Politics 1621-1629* (Oxford, 1979), have been slow to follow the research of their Tudor colleagues and examine legislation in the early seventeenth century.⁴ The effect of this is that the orthodox opinion of early Stuart legislation, and in particular the Monopolies Act, has never been challenged. The prevailing view remains that the House of Commons, led by Sir Edward Coke, not only set out to redress legitimate grievances (extortionate pricing and corruption by patentees) but also wrested from the King the prerogative power to grant monopolies and *non-obstante* licences. And through the enactment of legislation of benefit to the Commonwealth the Lower House forced the King to give up certain rights. Thus the Monopolies Act has always been regarded as a classic case of conflict between the Crown and the Commons. This piece argues, by means of a detailed study of the procedure of the bill through Parliament, that James supported the passage of the measure in both 1621 and 1624 and that the major opposition to the bill came from household officers and the House of Lords. Therefore, the Act should not be viewed as a major constitutional conflict won by an increasingly powerful Lower House but as an example of close co-operation between the Crown and the Commons. Furthermore, the article claims that the bill did not limit the prerogative rights of the King as it was simply a declaratory statute grounded upon the existing Common Law position, and that James had already acknowledged this state of affairs in the 1610 Book of Bounty.

I

The unpopularity of monopoly patents, and the consequent attacks upon them, was symptomatic of an economic depression and an increase in the

number and range of monopolies. This had been the circumstance which surrounded the petition against monopolies in the Parliament of 1597.⁵ England had not yet recovered from the depression of the late 1590s when a bill was introduced and debated in the heated atmosphere of the 1601 Parliament.⁶ In times of economic depression the concerns of MPs went beyond specific grievances to look for the underlying cause of the situation. Inevitably this led to grants which gave the patentee the sole right of buying and selling a particular product. But it was not until the end of Elizabeth's reign that a monopoly patent was tried at Common Law. In *Darcy v. Allen* (1602),⁷ the infamous playing-card case, it was ruled in the action upon the case that the patent was void on the grounds that it was a monopoly and thus against the Common Law, and that the particular patent was contrary to a number of acts of Parliament.⁸ In this case, the judges noted three specific criteria for its invalidation. Firstly, the prices of the commodity had to have risen. Secondly, the quality of the product needed to have declined, and, finally, artisans must have lost work as a result of the monopoly.⁹ This ruling reinforced the Proclamation of Queen Elizabeth which enabled subjects to seek remedy against a royal grant through the Common Law courts.¹⁰

On 7 May 1603 James issued 'A Proclamation inhibiting the use and execution of any Charter or Grant made by the late Queene *Elizabeth*, of any kind of Monopolies, &c.'¹¹ The proclamation forbade the use of any grant until it had been reviewed by the Privy Council. Three days earlier, Commissioners of Suits had been appointed to examine all the monopoly patents.¹² However, patents of monopoly continued to multiply and in 1606, after Parliament had again complained about monopolies, James agreed to annul a number of grants.¹³ But again in 1610 a petition from the House of Commons was presented to the King.¹⁴ In the same year James once more allowed his subjects to seek remedy through the Common Law when the *Book of Bounty* was published as a royal declaration.¹⁵ It stated that monopolies, grants of dispensation from penal laws, and forfeitures thereof were contrary to the Common Law. The Book also listed a number of roles which the King reserved for his own use. These were rents or leases in possession or reversion; lands entailed upon the Crown; customs, impositions and seizures of the same; licences to import and export commodities prohibited by law or any other items without customs charges; profits from tenures and alienations or from the use of seals; matters arising from assarts and defective titles; debts upon which a seizure had been made as well as all debts from 30 Elizabeth I; fines from Star Chamber; and the granting of pensions. Furthermore, it specified 11 items which the Crown could 'bee moued by Our Seruants and Subiects, and to reward them according to the particular merit of the Suitor'. Numbered amongst these

were gifts of offices; appointments of keepers of parks, forests, forts and castles; lands and goods of convicted felons (provided no suit is moved to the King or any law officer involved in the case before the conviction); pardons; escheats for want of an heir; lands purchased by aliens; denization of aliens; forfeitures of outlawries; projects of new invention; debts before 30 Elizabeth I (provided no seizure had been made); and some exceptions upon assarts and defective titles.¹⁶ Herein then was encapsulated a simple dichotomy - the Book stated that monopolies were contrary to the law but then listed a number of enterprises which could be monopolistic. These exceptions applied both to the provisions reserved for the King's use and those for which he could be petitioned for.

A monopoly was again tried in a court of Common Law in 1614 when the Cloth Workers of Ipswich brought an action in *King's Bench* against William Sheninge who practised the trade of a tailor in Ipswich without having served an apprenticeship, contrary to the charter of the Ipswich Cloth Workers. *King's Bench*, however, ruled that their charter was illegal because it granted them a monopoly. And, in doing so, the court overturned what had been regarded as the benchmark for such cases, the decision in favour of companies handed down in the case of *John the Dyer*.¹⁷ But despite the rulings in *Darcy v. Allen* and the *Cloth Workers of Ipswich v. Sheninge*,¹⁸ monopoly patents continued to be granted and executed. When Parliament assembled in 1621 patents were one of the first issues discussed, and as in 1601 the Commons decided to introduce a general bill to provide statutory confirmation that monopolies were illegal.

II

The original draft of the *1621 Monopolies Act* was penned by *Sir Edward Coke*. Amongst the Lower House the desire for a general bill against monopolies arose from the proceedings against Sir Giles Mompesson, the administrator of the patents of concealments, inns and woods.¹⁹ On 6 February 1621 Thomas Crew moved to have all monopolies sacrificed. However, it was not until the extent of the complaints associated with monopolies had started to be investigated by the Grievances' Committee that a number of other members called for a general bill. On 5 March Sir Dudley Digges and Sir John Walter both spoke in favour of legislation. The parliamentary diarist, John Smyth, noted that this suggestion was 'much aplawded' and shortly afterwards the House appointed a committee to consider the matter.²⁰ Three days later Coke suggested to the joint conference on Mompesson that a law should be made against monopolies and on 12 March he exhibited to the Commons 'An Act concerning monopolies and dispensations with penal laws and the forfeitures thereof'.²¹

The draft bill contained a preamble and four clauses. The preamble noted that the bill was designed to confirm in statutory format that monopolies, *non-obstante* licences and the forfeitures thereof were illegal. It was based upon the King's Book of Bounty, which, in turn, was grounded upon the Common Law. In fact some of the phraseology is drawn straight from the Book. Conrad Russell has noted that 'it is a coincidence, to put it no higher, that the Book of Bounty provided the preamble for the Monopolies Bill'.²² This is an extraordinary statement from Russell. When Coke first presented the bill to the Commons he acknowledged that he drafted the bill so that it was 'grounded upon the King's own Book'.²³ There are also striking similarities between the language of the book and the case of monopolies. The historical link is very clear; moving from *Darcy v. Allen* through the Book of Bounty and the Cloth Workers of Ipswich to the Monopolies Act. To say that it was a mere coincidence is to ignore the facts.

The first clause of the bill declared that monopolies should be tried in Common Law courts. The second dealt with the use of such grants and stated that no one was able to apply any grant declared illegal in the preamble. Thirdly, any person who utilised such a grant was subject to the penalties of the Statute of Praemunire.²⁴ The fourth clause of the bill enacted that anyone who had an illegal grant used against them could recover double costs and treble damages from the patentee.²⁵

The bill was given a second reading on 14 March. During the debate which followed William Hakewill argued against several of its provisions although he supported the principle of a general bill. In particular he noted that the bill did not define a monopoly, nor, because of the wording, could it be interpreted to extend to new inventions and corporations. In addition, Hakewill thought that the bill did not touch upon import or export monopolies. Coke replied to Hakewill. He did not consider it necessary to define the term 'monopoly' within the bill as the term referred to the way in which it was interpreted by the judges. Secondly, he noted that he had prosecuted *quo warranto* cases for importation when he was Attorney-General. However, he did explain that the bill had been hastily drawn and thus it probably contained some errors, for the remedy of which he moved to commit the bill. Sir Thomas Wentworth also expressed concern that a monopoly was not defined and Sir George Calvert, Secretary of State, expanded on Hakewill's comment on new inventions and hoped that the bill would not extend to the King's prerogative right to license new inventions. The last recorded speaker was Sir Thomas Roe, who wanted an amendment which specifically noted that sole export and import monopolies would be illegal. The bill was then committed to all the Privy Councillors in the Commons, all the King's Counsel in the House. Noy, Crew, William Lord Cavendish and Sir Nathaniel Rich.²⁶

cf) Sumner at
Webb과
연결

The committee was appointed to meet in the afternoon of the following day but the next recorded notation of the bill's procedure is at the Committee of the Whole House on 15 March. Coke reported from the Joint Conference on Mompesson and in doing so covered the legal basis upon which the bill was grounded. His argument was based on dispensations with penal laws, monopolies and the power to make laws. Firstly, laws were made *pro bono publico*. Secondly, 'the King was *Pater patriae* and therefore only trusted, which trust cannot be conveyde to any other'.²⁷ Thirdly, 'because when these penal laws were made the Parliament-men never thought that they shold be in any Subjects power, for if they had they wold otherwaies have ordered them or not made any such'.²⁸ On the issue of the legality of monopolies, Coke noted many legal precedents which declared that monopoly grants were illegal. Later that day at the committee the bill was read again. The major grievance was that it went 'too farre', was too general, and did not include an exemption for the charters of companies or cities. Also, towns with privileged customs were not considered in the bill. However, because of the absence of Crew and Noy, who had helped to draft the measure, 'the Committee was devided And part sent out to go thorowghe with the Bill of Monopolies'.²⁹

On 19 March Sir Edwin Sandys moved that the bill should be reported on the following day. The House agreed with Sandys's motion and on 20 March the Commons went into a Committee of the Whole House to hear Glanville's report.³⁰ He explained that the title of the bill had been altered and that the sub-committee had added four provisos to it. Monopolies for new inventions were specifically exempted. Secondly, charters of companies, towns and cities were not to be viewed as illegal monopolies. The last two provisos excluded from the bill those monopolies thought vital for the defence of the realm: saltpetre and gunpowder,³¹ alum,³² iron ordnance³³ and licensing of printing.³⁴ At this stage objections to the bill came from William Towerson and the Solicitor-General, Sir Robert Heath. Towerson, a deputy of the Merchant Adventurers Company, was anxious to preserve the non-obstante licence which allowed the Adventurers to transport cloth.³⁵ Sandys countered Towerson and commented that 'a subject ought not to be authorised to dispence with lawes ... this regall power ought not to be putt into the hand of a person that hath not a Regall minde'.³⁶ Heath argued that the bill should be re-committed for further consideration whilst John Whitson thought that the measure, as it stood, would destroy the trade in calf-skins. The bill was then re-committed for the following day.³⁷

The measure was again reported by Glanville on 26 March. The amendments,³⁸ which appear to have included provisos for monopolies erected by statute and the Earl of Nottingham's wine licence,³⁹ were twice read. However, it was the proviso for the sole manufacture and

transportation of iron ordnance which was debated at length. This patent was held by Sackville Crow, a servant of the Duke of Buckingham.⁴⁰ John Pym noted in his diary that the addition of the proviso to the bill had only passed by one vote in the committee. On the floor of the Commons, Sir Thomas Roe complained that Crow's patent had taken away the livelihood of the most expert founder in England, John Brown. He now had only one month's work per annum supplying the ordnance needs of the King. Any other sales of ordnance were reserved to the use of Crow. However, Sir Dudley Digges commented that he had been on a commission which examined the manufacture and transportation of iron ordnance. The commission recommended that there should be two furnaces in England, of which Brown's was to be one. Frustratingly, the record ends at this point with the note that the bill was ordered to be engrossed.⁴¹

It was not until 12 May that the bill received a third reading. The reason for the delay is not known but it is possible that the Commons wished to consider its examination of individual patents before they passed the measure. Sir Edwin Sandys, however, reported to the Lower House on 8 May that two further provisos had been added to the bill 'either by mistaking, or some other Misdemeanour'.⁴² The first proviso 'annext into paper to the Booke' stated that the bill would expire at the end of the next session of Parliament. The second proviso concerned non-obstante grants and stipulated that if the King issued letters patent which included a *non-obstante* clause then the act was void. As Pym noted, 'theis Provisions were never allowed by the Howse or the Committee'. The committee was ordered to examine the bill again. Accordingly, the provisos were removed.⁴³ On 12 May the third reading was moved by Sandys. After the reading, Sir John Strangeways and Sandys moved minor technical changes but both their amendments were rejected and the bill was passed with the order that it should be sent up to the Lords by itself with the special recommendation of the Commons.⁴⁴ Six days after the measure arrived in the Lords it was given a first reading. It received a second reading on 28 May and was committed to 17 peers with four legal assistants in attendance, including the Attorney-General, Sir Thomas Coventry.⁴⁵ The committee was ordered to meet at eight o'clock the following morning but no report was presented before Parliament was adjourned on 4 June.

Parliament reassembled on 20 November 1621. Four days later the names of the committee members were read out in the House and a time was appointed for them to meet.⁴⁶ Then on 27 November the Lords Journal records the names of further peers added to the committee: Baron Cranfield (Lord Treasurer), the Earl of Suffolk, the Bishops of Norwich and Exeter, and Lords Carew, Houghton, Brooke and Montagu.⁴⁷ In the Upper House the first day of December was mainly occupied in debate upon the Monopolies

bill. It was moved by Lord Sheffield that the Judges should deliver their opinion on the provisions and effects of the bill.⁴⁸ Thus the bill committee left the House to confer again. When the committee returned the Archbishop of Canterbury reported that 'they have mett often, the major parte, that yt may passe, yf your LL. shall thynke fitt'. The bill then received a third reading and was further debated. Fortunately, the Clerk of the Parliaments' notes survive and he recorded a full and vigorous discussion. The first speaker noted was the Earl of Pembroke. He neatly summed up the major opposition to the enactment of the measure. Pembroke commented that while he agreed with the 'pretence of the byll' he considered that it abridged the prerogative of the King. Secondly, he criticised the penal praemunire clause. In other words, he wished to see a bill which dealt with specific grievances in the past or present, not a general measure which declared future actions illegal. Both the Bishop of Salisbury and the Bishop of Norwich agreed with Pembroke. At this stage two peers are recorded as supporting the bill. Lord Saye and Sele correctly noted that 'yt cannot touche the Kinges prerogative. The Judges consydered of the bodye of the lawe, and that yt restreynes none but such as are contrary to the lawes of the lande: and to petition the Kinge, for this cannot touch his prerogative. 2. For the future, yt toucheth none but what shall be agaynste the lawe'.⁴⁹ The Bishop of Ely, in what he claimed was a rare speech in the chamber, agreed with Saye and Sele. The chairman of the bill committee, the Archbishop of Canterbury, followed Ely in order of speech, but emulated Pembroke in his opposition to the measure. He also moved that the bill should be re-committed for amendment. Arundel, however, in what was probably a tactical ploy to have it rejected, noted that a bill could not be re-committed after the third reading. The Lord Steward, Bishop John Williams of Lincoln (Lord Keeper), the Lord Treasurer and Lord President, the Earl of Cambridge, and Lords Zouch and Sheffield also opposed the bill. Lord Houghton and the Earls of Dorset and Warwick were in favour of re-committal and Lord Denny wished to see it enacted immediately. However, the House resolved that at the third reading a bill could only be passed or rejected. When the vote was taken for passage the bill was rejected 'by most voices'.⁵⁰

Nevertheless, the Lords did not let the matter rest with the rejection. A committee of eight peers and four legal assistants was named to draft a new bill before the House was adjourned.⁵¹ The following day the Lord Keeper moved for a joint conference. He suggested that the Upper House should explain to the Commons why the bill was rejected and that a committee had been appointed to draft a new bill. Pembroke and Houghton supported Williams and the Lords agreed to 'advise with [the Commons] for the drawing of a newe Byll'.⁵² On 10 December Canterbury reported to the assembled peers 'A Memorial of such Things as the Lords

have had in Consideration for preparing a Bill against Monopolies,⁵³ Like the Commons measure, the Memorial consisted of a preamble and four main clauses. The preamble noted that monopolies, *non-obstante* licences, or forfeitures thereof were 'expressly against the Fundamental Laws of the Realm, and contrary to the Royal Intention of His Majesty'. The first two clauses concerned particular patents (which were as yet unspecified) and their illegality. The practical effect of this was that the Lords wished to incorporate in the bill a list of monopolies and grants which were illegal, or, if issued again, would be illegal. Section three enacted the penalty of praemunire for anyone who obtained such a grant. Thus the first two clauses focused on the main objection of the Lords to the original bill: that it should only be applicable in the future to those grants which had already been revoked. Thus it did not apply to any monopoly not written into the measure. However, clause four expressly contradicted this position:

that no Person hereafter attempt, or make Suit for, the Grant of any unlawful Monopoly, or of the Benefit of any Penal Law, or of the Power to dispense with any Penal Law, or to compound for the forfeiture; being Matters no Way fit for the suit of private Persons; And, in case any Person sue for, and obtain, any such Grant, or any Benefit or Profit, by or out of such Grant, and the same Grant be not agreeable to the Common Laws of this Realm, the Offendor to forfeit Ten Times so much as he shall receive, one Moiety to the King, and the other to the Informer; the Tryal of such Things to be only by the Common Law, and that to be free and without Restraint.⁵⁴

The effect of this clause is exactly the same as the original bill. It fails to define a monopoly, except as that found illegal by Common Law. It is non-specific and seems to imply that the Common Law is the sole future arbiter of what is a monopoly or a *non-obstante* licence. Thus, the first three clauses are rendered redundant as the fourth section extends to future grants which are not mentioned by name in the bill. And this was the major 'stated' reason why the Lords rejected the bill on 1 December 1621. But the Memorial, drafted by the committee, and approved by the House, did exactly the same.

At this point the question must be asked why the bill was rejected. As with all issues of this nature, the answer is to be found in its complexity. It is fair to say that there was a genuine, if misplaced, fear that the bill limited the prerogative of the King. This is evident from the debate on 1 December. Secondly, there was a lack of communication between the bicamerality - no joint conference was held to discuss the bill.⁵⁵ The Lords did not receive any explanation from the Commons as to their intent in drafting the bill. Thirdly,

당시 상원 의원들이 반대한 이유 - 당시 이들은 새로운 invention이 아닌 기존의 특권들을 소유하고 있는 자들이었고(천지들까지 포함), 독점법의 제정은 court patronage에 대한 제한이고, 왕권에 대한 제한으로, 결과적으로 왕이 그들에게 지급하는 이익들을 얻지 못 하게 하기 때문이었다. (그러니까 독점법으로 포섭되는 기술 들에 포함이 안 되는 기술 또는 상품들에 대한 독점권을 갖고 있는 이들은 저항하고 가능한 보수적인 태도를 취할 수밖에 없었을 것) 수많은 예외 조항들을 추가하고자 했다. 그것들 중에 실패한 것도 있고 성공한 것도 있고.

또한 두번째로 상원 의원들의 역할은 하원 의원들이 작성한 법안의 법적 쟁점을 분명하게 하고 다시 법안을 작성하는 것이었다. 이를 위해 법적 전문가, 전문가들이 동원 되었다. 따라서 이들은 독점과 관련한 '성문법'을 만드는데 있어서 매우 조심스럽고 보수적인 태도를 취했다. .

as can be seen from the innumerable amendments to the bill, it was hastily and poorly drafted. One of the major functions of the Lords which had developed in the sixteenth century was the role of redrafting Commons legislation to clarify legal points.⁵⁶ The attendance of the legal assistants in the Upper House gave the Lords a natural advantage over the Commons. Finally, it is probable that the Lords viewed the bill as a threat to court patronage and specifically their own ability to receive benefits from grants of the King and to use their influence to reward clients and servants.⁵⁷

III

On 23 February 1624, the first full day of business of the new session, Sir Edward Coke moved that the 1621 Monopolies bill might be read.⁵⁸ The following day it received a first reading.⁵⁹ The same day the Lord Treasurer moved in the Upper House 'that the bill of monopolies might be to beginne here w[hi]ch would give much content to the Commons'.⁶⁰ However, it was decided 'that the Bill of Monopolies be respited a tyme in regard their lo[rds]hips would knowe whther the Com[m]ons goe forward w[i]th the same'.⁶¹ In the Commons, the second reading occurred two days later, at which time John Pym moved that the bill be committed. John Glanville, who throughout 1624 acted as the principal spokesman on the measure, agreed with Pym, noting that it was but a declaratory law.⁶²

When Glanville reported to the House on 9 March he noted that 20 alterations had been made to the bill, most of which involved the clarification of specific terms and phrases. For example, the measure was not to take effect until 40 days after the session concluded (the standard formula). Secondly, the Dominion of Wales was included in the bill; thirdly, it now named the three main Common Law Courts (King's Bench, Exchequer and Common Pleas) in which actions could be taken against grants of monopolies. This avoided the legal problem of cases brought in various county courts. In addition, the exemption in the bill for printing was amended to the satisfaction of the Stationers' Company. With rather basic amendments, such as the first three mentioned above, it is easy to see why there was concern in both Houses that the bill was poorly drafted.⁶³ As proposed in the previous Parliament, Glanville concluded with a recommendation from the committee that the bill be sent up to the Lords alone. He desired that the Commons stressed the importance of the bill to the Upper House because it was based upon the King's Book of Bounty. He also commented that it was only after they had rejected it in 1621 that the Lords requested a joint conference. The bill was then re-committed for further discussion.⁶⁴ Later the same day Glanville reported 'some little Alteration: Which were read; and ordered to be ingrossed speedily'.⁶⁵ On 12

March Glanville moved that the bill should receive a third reading and the Commons ordered that this would take place the next day. Thus on 13 March it was read for a third time, passed, and carried to the Upper House by Glanville.⁶⁶

In the Lords it received a first reading as soon as it arrived.⁶⁷ The second reading occurred on 18 March. At this point the bill was committed to 32 peers with the four senior legal assistants in attendance. They were to meet the following day at two o'clock in the Painted Chamber.⁶⁸ It is possible to surmise by the large size of the committee compared to 1621, that the Lords attached more importance to the bill in 1624. Most of the senior Privy Councillors were on the committee. These included the Archbishop of Canterbury, the Earl of Middlesex (Lord Treasurer), Viscount Mandeville (Lord President), the Earl of Worcester (Lord Privy Seal), the Earl of Oxford (Lord Chamberlain of England), the Earl of Arundel (Earl Marshal) and the Earl of Cambridge (Lord Steward).⁶⁹

On 3 April the Archbishop of Canterbury reported the deliberations of the committee to the House. He recommended that the Lords should request a joint conference to examine both the 'main body' of the bill and the provisos. He noted that the committee had received many petitions but that they should not be reviewed until the bicameral meeting.⁷⁰ On 7 April the Lords sent a message to the Commons to request a meeting the following day. They appointed the 32 members of the committee and the Commons replied that it would meet 'with a Committee of Sixty-four, according to the ancient course'.⁷¹ Of those MPs named, the Lower House appointed Coke, Sir Heneage Finch, Heath, Sir John Walter, Glanville and Noy to manage the conference, although Noy questioned his inclusion. John Holles noted 'Noy would have excused himself, for [that] he was a stranger to [the] bill: but Cook would have his company, saying he was allways armed, and carried *bibliothecam in capite*'.⁷² Sir Robert Mansell, who held the patent for making glass using sea-coal, received permission to present his proviso for exemption at the conference. Sir Henry Vane was likewise allowed to address the conference in respect of his patent for appointments to the Subpoena office.⁷³

Coke reported the proceedings at the joint conference to the Commons on 19 April 1624. The Lords had 17 exceptions to the bill. Viscount Mandeville noted that there were five general scruples. The first reservation was related to the provisos. Mandeville thought that there was a contradiction between the main part of the bill which declared all monopolies void and the specific saving clauses. Coke pointed out, however, that the clauses were provisos, not savings, and that they only affected the declaratory law to the extent they were exempted from the penalties imposed by the bill. Thus the measure did not legitimise the patents mentioned in provisos.

The second question from Mandeville concerned what action could be taken against a monopolist. Coke replied that it was possible for the plaintiff to sue by Common Law or *'contra formam statute'*. The third point concerned the form of praemunire. The bill stated that anyone who delayed an action without a court order was subject to a praemunire. Thus, Coke commented to the Lord President, it applied to Judges and Privy Councillors who might attempt to stay the suit. Then Mandeville asked, as the bill gives only one imparlance, what would happen if the King was not available and the issue concerned a matter of state? Coke simply noted that whilst one imparlance could be granted, the case could be continued many times. Fourthly, concern was expressed by the Lords about new inventions. The bill did not allow for future new inventions and it noted that these *'should not be inconvenient'*. However, Mandeville thought that new inventions which are inconvenient at one point in time are not necessarily so at all others. On these points Coke agreed that the bill needed to be amended but he did not accept that additions to old inventions should be classified as a new invention - in his oft-quoted line, *'but a new button to an old coat'*. Finally, the Lord President was concerned that the bill abridged the King's prerogative to make new corporations. Coke simply answered that it did not do so and that the power of the King to make new corporations, even those which were based on sole buying and selling, was unchanged.

The Attorney-General, Sir Thomas Coventry, then addressed a number of questions to Coke. The first was whether shot could be added to the gunpowder and ordnance proviso as it was essential to the defence of the realm. This was agreed to by the Commons committee. In reply to the Attorney on the limit of 11 years on the printing patent, Coke noted that printers had been consulted and accepted the limitation. However, the proviso would be changed to remove any time limit on the patent. Thirdly, a proviso was debated to protect the rights of the Hostmen of Newcastle, who had been incorporated by a grant in 27 Elizabeth I in which she dispensed with their forfeitures in return for 12d. per chaldron. Coke thought that this was more of a 'contract' than a monopoly and the proviso was not included in the bill.⁷⁴ A proviso for the transportation of calf-skins⁷⁵ was also rejected whilst minor changes were made to the alum proviso.⁷⁶ After Coke had reported the proceedings to the House, the Commons examined four additional provisos: Mansell's glass patent, the grant for sole writing under the Great Seal held by Sir Richard Young,⁷⁷ Doctor Chamber's patent for Sheriffs' accounts,⁷⁸ and Vane's Subpoena office grant. The House appointed a sub-committee *'not to alter the Body of the Bill, but to add some convenient Provisions, that may further the Passage of the Bill'*.⁷⁹

On 1 May 1624 Coke reported the deliberations of the sub-committee to

the House. The committee thought that provisos should be inserted for the Subpoena office, glass, and sole writing grants. Furthermore, they asked for a conference with the Lords to inform the Upper House that the Commons would have no objections if the Lords drafted provisos to exempt these grants. However, Coke noted that the committee 'have affirmed, nor condemned none'.⁸⁰ In other words, they would allow these exemptions in order to facilitate the passage of the bill. The conference was reported to the Commons on 13 May and Coke informed the assembled members that provisos had been discussed for the Hostmen of Newcastle, saltpetre, wine and smalt. The Lords had asked for a committee of four peers and eight MPs to meet 'for the penning of these things'. Coke, Walter, Selden, Noy, Glanville, Phelips, Humphrey Weare and Sir Humphrey May were appointed to meet with the Lords.⁸¹

On 20 May, in the Upper House and after a series of joint conferences, the Monopolies bill was reported by the Lord President as 'fit to pass, with some Amendments and Provisos'. Mandeville then moved that a proviso be added for Lord Dudley's grant for the manufacture of iron using sea-coal and this was agreed to by the Lords. However, there was still considerable concern in the Upper House that Privy Councillors could be convicted of praemunire if a letter was sent by the Privy Council to stay the proceedings on an action. Support for an amendment to exempt the Privy Council from praemunire came from the Lord Keeper, Arundel and the Lord Steward. Even Prince Charles doubted that the King would give his assent to the bill if a proviso to this effect was not added.⁸² Saye, Canterbury and Southampton opposed any exemption on praemunire: 'the great expectacion of this Bill, and the benifytt. Feares yt wyll not passe yf that clause be altered, or taken awaye. That the penalty may remayne greate and sever, or else yt wyll not retreyne our nation's naturall inclinacion to monopolies: [er/go to rest as yt is, lest it passe not'.⁸³ The bill was then referred again to the committee. The following day Mandeville reported the bill as fit to pass with one further amendment and another proviso added.⁸⁴ These received a first and second reading and were ordered to be engrossed. The Lord Keeper interrupted the reading to request again that Privy Councillors be exempt from praemunire but was told by Viscount Montagu not to speak until the amendments had been read.⁸⁵ On 22 May it received a third reading in the Upper House. Yet again, praemunire was discussed. Prince Charles, two days after his opposition to the praemunire clause, commented 'I was wylling to have had a larger caution but am nowe fully satisfied that there is caution enough'.⁸⁶ Finally the bill was put to the question and passed but unfortunately there is no record as to whether it was approved *nemine dissentiente* or *per plures*.⁸⁷

The Commons received the bill in the afternoon of 22 May; two days

later it gave the amendments and provisos two readings and committed them to the committee for the Concealments bill.⁸⁸ On 25 May Coke reported that the committee agreed with the amendments and provisos. The amendments were inserted into the bill, the additional proviso for Dudley was annexed and later the same day they were read for a third time and passed.⁸⁹ Parliament was adjourned on 29 May after the King had given the royal assent to 73 bills. Included amongst that number was 21 James I cap.3, 'An Act concerning Monopolies and Dispensations with the penall Lawes and the Forfeiture thereof'.⁹⁰

IV

A number of persistent myths have distorted the significance of the Monopolies Act. Firstly, that the original bill made the King *lex loquens*. Secondly, that the bill limited the royal prerogative, and, thirdly, that James was opposed to the bill. It can be seen that throughout the procedure of the Monopolies bill in Parliament two issues provided the greatest debate: specific exemptions and the basis for declaring monopolies illegal. Robert Zaller has noted that if the bill cited the Book of Bounty as its basis then the King was *lex loquens*.⁹¹ In fact Zaller is incorrect on two counts. The King's Book was itself based upon legal precedents and the 'ancient and fundamentall lawes' of the realm. It did not, as in any case no declaration or proclamation could, create a new law.⁹² It declared the existing Common Law position on monopolies and dispensations of penal laws and noted that they were 'things contrary to our lawes'. Secondly, the reference to the Book in the preamble, and the enactment of part of it as statute law, invested the authority in the statute not the Book. It was the enactment of statute which had sovereign legislative power. Simply because it was cited in the preamble of the bill did not mean that the Book could be viewed as law retrospectively. It did, however, point out the King's complicity in the enactment of the statute. The addition which Zaller noted, 'which your Ma[jes]ties declaracion is truly consonant and agreable to the ancient and fundamentall lawes of this your realme', clarified a poorly and hastily compiled first draft of a major piece of legislation. It did not change the Book of Bounty 'from a direct declaration of law to a mere commentary on it'.⁹³

Secondly, the Monopolies Act has been variously described as the 'first statutory invasion of the prerogative'⁹⁴ and more generally as an attack on the royal prerogative. Also, in the words of Elizabeth Read Foster, 'as the King protested the Commons's procedure against his grants, so, too, could he protest and with justice the great Statute of Monopolies which emerged from the sessions [*sic*] of 1624'.⁹⁵ Did the Monopolies Act thus invade, attack or limit the royal prerogative? The short answer to this is 'No'. The

Act was simply a declaratory statement of the Common Law position and the King's own views. It enacted an existing state of affairs in the Common Law. It cites the King's declaration of 1610 that all monopolies are contrary to the ancient and fundamental laws of the realm. Within the statute the King declares that it should be enacted. The position is then outlined. Thus the act does two things. It declares that monopolies are contrary to the laws of the realm (subject to and qualified by certain restrictions) and then as a consequence of this 'they are and shalbe utterlie void'. The status of the act can be compared to the 1534 Henrician Act of Supremacy,⁹⁶ which provided statutory confirmation that the royal supremacy already existed as fact. The phrase used in the act is 'for corroboration and confirmation thereof'. This is a term which could be used accurately to describe the Monopolies Act. It provided statutory corroboration and confirmation that monopolies were illegal and the enactment was simply a statutory reinforcement of the Common Law position. It did not innovate and thus cannot be regarded as a limitation or attack on the prerogative. Limitation and attack have pejorative and Whiggish overtones which are not applicable to the Monopolies Act. Interestingly, even Coke offered to withdraw his support for the bill if it was found to be against the royal prerogative.

James and the Privy Council had not been idle during the debates on the bill or on the innumerable patents which were called into the 1621 Parliament. With regard to monopoly patents: the King giveth and the King taketh away. This is precisely what occurred after the first session of 1621. Even during the first session, the patents for inns, alehouses and gold and silver thread had been voided by royal proclamation.⁹⁷ Conrad Russell has noted that on the issue of patents, the King, court and country found a point of contact. This contact expanded when 34 patents of monopoly or non-obstante licences were withdrawn by Proclamation in June 1621:

whereas his Majestie hath received information of sundry grievances lighting upon many of his people, and chiefly the poorer sort, by reason of divers Priviledges, Licences, and other Letters Patents procured from his Majestie, upon suggestions made to his Highnesse, that the same should tend to the Common good and profite of his Subjects; Howbeit upon examination it doth appeare, that many of the said grantes were onely obtained upon false and untrue surmises, but have been also notoriously abused: His Majestie ... is willing to manifest; That these abuses and surreptions against his precise Charge and Direction, have confirmed Him in an utter distaste of Suites of that nature, and is resolved, by making those Patents already obtained from Him to be fruitlesse to the Procurers, to discourage all others to presse or importune Him in the like.⁹⁸

The swiftness with which James and the Privy Council acted does show that the King genuinely wished to remedy the problems of dubious grants.

But there can be little doubt that the patent system had been manipulated to serve as a device of court patronage. In his address to the Lords in March 1621 James commented that prospective patentees 'have bene soe troublesome to me that neither my selfe nor those about me could rest in their beddes quiet for projectors'.⁹⁹ Hardly the speech of a King anxious to hinder the meddling of the House of Commons with his affairs. In addition, as Russell has noted, James's support for the bill was quite clear. It was the King who commented to Parliament in 1621, 'I am contented that there should be a law against these things'.¹⁰⁰ Furthermore, he did not exercise his prerogative at the end of the session to veto the bill. And even during the 1621 adjournment, Sir Thomas Edmondes had sent a letter to Dudley Carleton in which he noted 'His Majesty has declared his intention to revoke monopolies and redress grievances'.¹⁰¹

One interesting aspect of debates on the bill in both 1621 and 1624 is the involvement of all the senior legal officers, the vast majority of the Privy Council, senior clerics, the King, Prince Charles, major household officers, eminent lawyers within the Commons; in fact the involvement of all the senior members of the government with the notable exception of one, the King's favourite, George Villiers, Duke of Buckingham. In general terms, Buckingham's involvement with monopolies revolved around himself as the procurer rather than the patentee. Admittedly, Buckingham was heavily involved in the joint conferences on Mompesson in 1621, but he appears to have played no part in the debates on the bill. Nor did he sit on any committee which examined the measure or participate in the conferences in 1624. The probable reason for Buckingham's absence is the role that he played in the procurement of patents for members of his family.¹⁰² His brother Christopher (Kit), later Earl of Anglesey, was involved with the patents for alehouse recognizances, the probate of wills, gold and silver thread, and inns.¹⁰³ Buckingham's half-brother, Sir Edward Villiers, held interest in gold and silver thread, gold weights and inns.¹⁰⁴ Buckingham himself had acted as procurer and promoter for at least 18 grants including gold and silver thread, inns, alehouses, concealed tithes, starch, tobacco pipe-makers, wills, the surveying of lead and the manufacture of iron ordnance.¹⁰⁵ In addition, there was a familial connection between Buckingham and Mompesson - the latter was the brother-in-law of Sir Edward Villiers.¹⁰⁶ Buckingham, although attacked by both the Commons and the Lords for his role as procurer and referee in patents, was probably saved from any censure or punishment by James. The King would not allow the referees of patents to be judged by Parliament.¹⁰⁷ Buckingham, rather belatedly after Mompesson had escaped, spoke in favour of punishing him,

and eventually abandoned his brothers to the judgement of Parliament: 'if it should appear they were faulty he would not protect them; but we should see that the same father who begot them that were offenders begot a third that would get them to be punished'.¹⁰⁸ Thus the probable reason why Buckingham was not involved with the Monopolies bill was his rationalisation that it was unwise to be associated with such a controversial issue in which he had played a major role.

The Monopolies bill touched upon virtually every aspect of English political life: economic regulation; the royal prerogative; patronage; *lex legem terrae*; extra-parliamentary revenue; corporations and charters; the defence of the realm; the role of the Privy Council; and penal legislation. Perhaps because of this wide range of concerns, but certainly because of hasty and poor draftmanship, the bill had a lengthy and convoluted procedure in both 1621 and 1624. However, it is a fair comment that on an issue as complex as monopolies, there was always going to be some dispute over the wording and scope of the bill.

NOTES

1. Charles Howard McIlwain, *Constitutionalism, Ancient and Modern*, New York, 1940, 138; Wallace Notestein, 'The Winning of the Initiative by the House of Commons', *Proceedings of the British Academy*, London, 1924, *passim*.
2. See especially, G.R. Elton, 'Tudor Government. The Points of Contact. I. Parliament', 5th ser. 24 *Transactions of the Royal Historical Society* (1974), 183-200; idem, *The Parliament of England 1559-1581* (Cambridge, 1996); Pauline Croft, 'The Parliament of England', 6th ser., 7 *Transactions of the Royal Historical Society* (1997), 217-34.
3. David Dean, *Law-making and Society in Late Elizabethan England: The Parliament of England, 1584-1601*, Cambridge, 1996; C.G. Ericson, 'Parliament as a Legislative Institution in the Reigns of Edward VI and Mary I', unpublished London University Ph.D., 1976; Norman Jones, *God and the Moneylenders: Usury and Law in Early Modern England*, Oxford, 1989.
4. The other exception is Pauline Croft's work on purveyance and free trade. Pauline Croft, 'Free Trade and the House of Commons, 1605-6', 2nd ser., 28 (1) *Economic History Review* (1975), 17-27; idem, 'Parliament, Purveyance and the City of London 1589-1608', 4 *Parliamentary History* (1985), 9-43.
5. Dean, 86-7; G.R. Elton, *The Tudor Constitution: Documents and Commentary*, 2nd edn., Cambridge, 1982, 309, 311, 323-6; J.E. Neale, *Elizabeth I and her Parliaments, 1584-1601*, London, 1957, 352-6.
6. Dean, 86-92; see, in particular, Sir Simonds D'Ewes, *Journals of All the Parliaments during the Reign of Queen Elizabeth*, London, 1682, 644-8, 652-7; Conrad Russell, 'English Parliaments 1593-1606: One Epoch or Two?' in *Parliaments of Elizabethan England*, ed. David Dean and Norman Jones, Oxford, 1990, 199-200; Michael A.R. Graves, 'Managing Elizabethan Parliaments', in idem, 47, 57, 63.
7. *Darcy v. Allen* is also known as the 'Case of Monopolies'.
8. 11 Richard II cap.6; 11 Henry IV cap.4; 33 Henry VIII cap.9.
9. Noy 173; 11 Co. Rep. 84b; Moore K.B. 671; Harold G. Fox, *Monopolies and Patents: A Study of the History and Future of the Patent Monopoly*, Toronto, 1947, 87-9, 318-26; William Hyde Price, *The English Patents of Monopoly*, Cambridge, 1913, 7-24; D.

- Seaborne Davies, 'Further Light on the Case of Monopolies', 48 *Law Quarterly Review* (1932), 394-414.
10. Paul L. Hughes and James F. Larkin, *Tudor Royal Proclamations*, 3 vols., New Haven, CT, 1969, Vol.III, 235-8.
 11. James F. Larkin and Paul L. Hughes, *Stuart Royal Proclamations: Royal Proclamations of James I*, Oxford, 1973, 11-14.
 12. On the 1603 proclamation, the Commissioners of Suits, and their effect on the 1604 Parliament see Nicholas Tyacke, 'Wroth, Cecil and the Parliament of 1604', 50 *Bulletin of the Institute of Historical Research* (1977), 120-24.
 13. Public Record Office, SP 14/23/66, 67; *C.J.*, I, 316-18.
 14. P.R.O., SP 14/56/10.
 15. There is some debate as to whether the Book was a declaration or a proclamation. Although it is listed by Steele as No. 1,108, it was omitted by Larkin and Hughes. The only criterion of Larkin and Hughes that it does not seem to meet is that there is no evidence of its circulation and 'proclamation' in the shires. Thus in this case the difference between a declaration and a proclamation is minimal. The Statute of Monopolies simply refers to the Book as 'published] in print to the whole Realm and to all posteritie'. It was regarded by the Commons in 1621 and 1624 as a royal proclamation. See *A Bibliography of Royal Proclamations of the Tudor and Stuart Sovereigns, and of Others published under Authority, 1485-1714*, ed. R.R. Steele, 2 vols., Oxford, 1910, Vol.I, no.1,108; Larkin and Hughes, xii.
 16. P.R.O., SP 14/37/72-6; The Book was re-issued in 1619: P.R.O., SP 14/97/19-26. See also *Commons Debates 1621*, ed. Wallace Notestein, Frances Helen Relf and Hartley Simpson, 7 vols., New Haven, CT, 1935, Vol.VII, 491-6; British Library, Lansdowne MS 151, fo.57; British Library, Additional MS 10038, p.2.
 17. Year Book, 2 Henry V, 5B. It was also against the statute 9 Edward III c.1. For the Cloth Workers of Ipswich see 11 Co. Rep. 53a.
 18. It should be noted that in both cases the action was brought by the patentee against a person who infringed his or their grant.
 19. *CD. 1621*, VII, 346-7, 364-70, 483; Colin G.C. Tite, *Impeachment and Parliamentary Judicature in Early Stuart England*, London, 1974, 85-110; Conrad Russell, *Parliaments and English Politics, 1621-1629*, Oxford, 1979, 61, 66, 99, 102, 105-8; Elizabeth Read Foster, 'The Procedure of the House of Commons against Patents and Monopolies, 1621-1624', in William Appleton Aitken and Basil Duke Henning, eds., *Conflict in Stuart England: Essays in honour of Wallace Notestein*, New York, 1960, 60, 73, 75. In her section on monopolies, Linda Levy Peck has confused the patents for alehouse recognizances and inns. She claims that Charles Earl of Nottingham sublet the alehouse grant to Mompesson but Mompesson was not involved in the alehouse patent. Linda Levy Peck, *Court Patronage and Corruption*, Boston, 1990, 142.
 20. *CD. 1621*, II, 167-8; V, 272; *C.J.*, I, 538-9. The committee was comprised of Coke, Crew, William Denny, Francis Glanville, William Noy and Walter.
 21. The bill received a first reading at this stage. *CD.1621*, II, 194, 210; V, 289-90; VI, 56; *C.J.*, I, 551.
 22. Russell, 99.
 21. *C.J.*, I, 663.
 24. 16 Richard II cap.5.
 25. House of Lords Record Office, Main Papers, 12 March 1621.
 26. *C.J.*, I, 553-4; *CD. 1621*, II, 218-19; IV, 153; V, 38-9; V, 296; VI, 61-2.
 27. *CD. 1621*, IV, 157.
 28. *CD. 1621*, VI, 382.
 29. *CD. 1621*, IV, 160; V, 301.
 30. *C.J.*, I, 563, 564.
 31. On the manufacture of saltpetre and gunpowder see O. Hogg, 'Gunpowder and its Association with the Crown', 71 *Journal of Royal Artillery* (1944), 177-89.
 32. For the history of alum manufacture and patents associated with it see Price, 83-101; R.B. Turton, *The Alum Farm*, Whitby, 1937; *CD. 1621*, VII, 323-4.

33. On the patent for making iron ordnance see *CD. 1621*, VII, 415-18.
34. Stephen D. White, 'Sir Edward Coke in the Parliaments of 1621 and 1624', unpublished Harvard University Ph.D., 1972, 553.
35. The Adventurers' licence was a dispensation from the statute 27 Henry VIII cap.13 'An Acte that White Wollen Clothes of iiij li. & under & collored Clothes of iii li. & under, may be frome hensforth caried ov[er] the See'. The Commons Journal incorrectly notes 'corn above 4l. Price' instead of 'cloth above £4'. *C.J.*, I, 564.
36. *CD. 1621*, V, 54. This was also the opinion of James as stated in the Book of Bounty: 'THINGS CONTRARY TO OUR LAWES ... 2. Graunts of the benefite of any Penal Lawes, or of power to dispenche with the Lawe, or compound for the forfeiture.'
37. *C.J.*, I, 564; See also *CD. 1621*, VII, 338-9.
38. On the technical wording changes see Stephen D. White, *Sir Edward Coke and the 'Grievances of the Commonwealth', 1621-1628*, Chapel Hill, 1979, 131-2.
39. Lawrence Stone, *The Crisis of the Aristocracy 1558-1641*, Oxford, 1965, 436.
40. For the patent see *CD. 1621*, VII, 165-6, 416-18. On the relationship between Buckingham and Crow see Roger Lockyer, *Buckingham: The Life and Political career of George Villiers, First Duke of Buckingham 1592-1628*, London, 1981, 285, 363, 367, 412, 448.
41. *C.J.*, I, 575; *CD. 1621*, II, 267; IV, 197-8; V, 322.
42. *C.J.*, I, 612-13.
43. *C.J.*, I, 612-13; *CD. 1621*, II, 354; III, 198; IV, 318.
44. *C.J.*, I, 619; *CD. 1621*, II, 360; III, 235-6; IV, 333-4; V, 161, 373; VI, 153.
45. The committee consisted of the Archbishop of Canterbury George Abbot, Henry Viscount Mandeville (Lord Treasurer), Henry Earl of Southampton, Robert Earl of Essex, Robert Earl of Warwick, Bishops of Winchester, Bangor and Ely, and Edward Lord Dudley, William Lord Paget, Oliver Lord St. John of Bletso, Theophilus Lord Howard of Walden, Francis Lord Russell of Thornhaugh, Robert Lord Spencer, William Lord Saye and Sele and Edward Lord Denny. Baron Bromley, Justices Hutton and Chamberlain, and the Attorney-general acted as legal advisors. *L.J.*, III, 137. The bill was ordered to be read three days earlier but the second reading was probably delayed by the judicature proceedings against Edward Floyd.
46. *L.J.*, III, 168.
47. *L.J.*, III, 172. During the summer recess Cranfield was appointed to the position of Lord Treasurer. He replaced Viscount Montagu who became Lord President of the Privy Council.
48. *Notes of Debates in the House of Lords 1621*, ed. S.R. Gardiner, Camden Society, Old Series, vol.103, London, 1870, 104.
49. Gardiner, *Lords Debates 1621*, 102.
50. Gardiner, *Lords Debates 1621*, 102-5; *L.J.*, III, 177.
51. The members of the committee had all spoken to the bill: Archbishop of Canterbury, Treasurer, President, Bishop of Norwich, and Lords Sheffield, Houghton Saye and Sele, and Brooke.
52. *L.J.*, III, 178-9.
53. *L.J.*, III, 188-9.
54. *L.J.*, III, 188-9.
55. Conrad Russell has claimed that in 1621 a number of joint conferences were held on the Monopolies bill. I have not been able to find evidence of these meetings. The bill was mentioned at a conference on Mompesson on 8 March and again when the Lords requested a conference on 10 December, ten days after they had rejected the bill. However, the Commons did not agree to a meeting. Due to its dispute with the King the House had ceased to transact any business. Russell, 190. In a similar manner Stephen White claims that after the Lords rejected the bill 'the Lower House was never able to draft a new bill agreeable to them'. Here White has misrepresented the circumstances which followed the request for the joint conference. His source, a footnote in his doctoral thesis, quite clearly contradicts his published assertion. White, *Grievances of the Commonwealth*, 132 and n.212; idem, 'Coke in Parls. of 1621 and 1624', 212 n.107, 558.
56. Michael A.R. Graves, *Tudor Parliaments: Crown, Lords and Commons, 1485-1603*,

- London, 1985, 22-3; idem, *The House of Lords in the Parliaments of Edward VI and Mary I: an institutional study*, Cambridge, 1981, 125-40, 155-6; Elizabeth Read Foster, *The House of Lords 1603-1649: Structure, Procedure, and the Nature of its Business*, Chapel Hill, 1983, 72-3.
57. Russell, 190-91.
 58. *C.J.*, I, 716; John Holles, Diary 1624 Parliament, B.L., Harleian MS 6383, fo.81; Sir William Spring, Diary 1624 Parliament, Harvard University, Houghton Library, English MS 980, fo.9.
 59. *C.J.*, I, 717; Sir Simonds D'Ewes, Diary 1624 Parliament, B.L., Harleian MS 159, fo.61; Sir Walter Earle, Diary 1624 Parliament, B.L., Additional MS 18597, fo.15; John Pym, Diary 1624 Parliament, Northamptonshire Record Office, Finch-Hatton MS 50, fo.5; Sir Nathaniel Rich, Diary 1624 Parliament, B.L., Additional MS 46191, fo.5; Sir John Lowther, Diary 1624 Parliament, Cumbria Record Office, D.Lons. L2/1, fo.4; Spring, fo.16.
 60. H.L.R.O., Manuscript Minutes, Vol.II, fo.1 lv.
 61. H.L.R.O., Manuscript Minutes, Vol.II, fo.11v.
 62. Nine members were named to the committee: Coke, Pym, Glanville, Sir Robert Heath (Solicitor-General), Sir Heneage Finch (Recorder of London), Sir Francis Fane, Sir Edwin Sandys, Sir Robert Rich, Sir Walter Pye. However, all members who attended were able to speak. In a similar manner to 1621 the small size of the committee is evident. Probably, this was regarded very much as a working group which would undertake the technical changes whilst the bill itself would be examined by a Committee of the Whole House. *C.J.*, I, 719; Rich, fo.18; D'Ewes, fo.64v.
 63. Pym, fo.23. Two new provisos were rejected by the committee. The first dealt with the charter of Cambridge and the second was an exemption for salt pits in Worcestershire. In the case of Cambridge, its charter and customs were already protected by clause nine of the statute.
 64. It is unclear exactly why the bill was re-committed. Unfortunately, Pym was the only diarist to take notes on the debate and whilst he noted ten of the amendments he did not explain why the bill was re-committed. Pym, fo.23. See also *C.J.*, I, 680, 731.
 65. *C.J.*, I, 680, 731.
 66. *C.J.*, I, 684, 685, 734, 736; Holles, fo.99; Lowther, fo.31; D'Ewes, fos.83v-4; Earle, fo.82; Pym, fo.28v.
 67. *L.J.*, III, 260-61.
 68. *L.J.*, III, 267; H.L.R.O., Committee Appointment Book (I) fo.16; (II) fo.6b. The four senior legal assistants were the Chief Justices of King's Bench and Common Pleas, the Lord Chief Baron of the Exchequer and the Attorney-General. Respectively, they were, Sir James Ley, Sir Henry Hobart, Sir Lawrence Tanfield and Sir Thomas Coventry.
 69. Other members of the committee were the Earls of Southampton, Dorset and Bridgewater, Bishops of Durham, Rochester, Coventry and Lichfield, Bath and Wells, Bangor, Salisbury and Exeter, and Lords Willoughby of Eresby, Scrope, Darcy of Menell, Wentworth, Cromwell, Sheffield, Paget, North, St John of Bletso, Walden, Russell, Spencer, Saye and Sele, Carew and Montagu. *L.J.*, III, 267.
 70. *L.J.*, III, 287; *Notes of Debates in the House of Lords ... 1624 and 1626*, ed. Samuel Rawson Gardiner, Camden Society, New Ser., Vol.LXXXI, 1879, 50.
 71. *L.J.*, III, 293; Gardiner, *Lords Debates 1624*, 59.
 72. Holles, fo.120v. Noy's attitude at this time contrasts with his apparent involvement with the drafting of the bill in 1621.
 73. For Mansell's glass patent see *CD. 1621*, VII, 362-3, 539-49. See also Eleanor S. Godfrey, *The Development of English Glassmaking 1560-1640*, Oxford, 1975, Chapters III-V. Vane was Cofferer of the Prince's Household. I have been unable to locate the original grant.
 74. On the activities of the Hostmen in the early seventeenth century see J.U. Nef, *The Rise of the British Coal Industry*, Vol.II, London, 1932, 21, 110-15, 121-8; *CD. 1621*, VII, 85, 97-9, 429-32.
 75. See *CD. 1621*, VII, 338-9.
 76. For the proceedings on 19 April 1624 see *C.J.*, I, 770-71; D'Ewes, fo.111, Earle, fos.149v-51v; Pym, fos.71v-72v.

77. I have been unable to locate this patent.
78. I have no record of this grant.
79. *C.J.*, I, 771.
80. *C.J.*, I, 696, 781.
81. *C.J.*, I, 703, 788.
82. On this matter Prince Charles did not know his father's mind as the bill was given the royal assent without an exception on *praemunire*. See also Chris R. Kyle, "He sayes to sit often there with the Lords": Prince Charles in the Parliaments of 1621 and 1624', *Historical Journal* (forthcoming).
83. This speech was delivered by Southampton. Gardiner, *Lords Debates 1624*, 98.
84. Dudley's patent for iron.
85. *L.J.*, III, 397; Gardiner, *Lords Debates 1624*, 98-9.
86. Gardiner, *Lords Debates 1624*, 101.
87. *L.J.*, III, 400.
88. *C.J.*, I, 710, 793; Spring, fos.238-40. This committee had been appointed on 22 May 1624. Within its 24 members were Coke, Glanville, Noy, Walter and Weare. Thus five of the sub-committee from 13 May were amongst those named to review the amendments.
89. *C.J.*, I, 711, 794.
90. D'Ewes, fo.129.
91. R. Zaller, *The Parliament of 1621: A Study in Constitutional Crisis*, Berkeley, 1971, 126-7.
92. Elton, 20-23; See also Larkin and Hughes, 253-4 n.1 where James's views on the legal position of monopolies are reprinted from *L.J.*, II, 659.
93. Zaller, 126.
94. McIlwain, 138.
95. Foster, Patents, 76.
96. 26 Henry VIII cap.1 'An Acte conc[er]nyng the Kynes Highnes to be supreme heed of the Church of Englande & to have auctoryte to reforme & redresse all errours heresyces & abuses yn the same'. I am grateful to Professor Michael Graves for bringing this point to my attention.
97. Larkin and Hughes, 503-5.
98. Larkin and Hughes, 511-19.
99. *The Hastings Journal of the Parliament of 1621*, ed. Lady de Villiers, Camden Society, *Miscellany*, XX, 3rd Ser., 1953, 26.
100. de Villiers, 26.
101. P.R.O., SP 14/121/96.
102. Lockyer, 89-96.
103. Kit Villiers had the notable claim to fame that he was involved with what were regarded as the three most notorious monopolies, all of which were voided by Proclamation in 1621.
104. Lockyer, 90, 93.
105. See respectively, *CD. 1621*, VII, 367, 379, 312, 344-7, 437-43, 391-2, 416-17, 461, 469-70. Other grants included affidavits in Chancery, begging briefs, charcoal, custom house, non-payment of customs, lampreys, making rivers navigable and tobacco garbling. *CD. 1621*, 311, 331-2, 340, 348, 348-9, 390-91, 428-9, 457-9.
106. Lockyer, 92; Tite, 92-3.
107. Russell, 108-11.
108. *C.J.*, I, 552. Quoted in Lockyer, 96. I am grateful to Professor Michael Graves, Dr Paul Hunneyball and Dr Henry Lancaster for their comments upon an early draft of this article.